

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                                           |                                     |                                                        |                                               |                                 |
|--------------------------------------------------|-----------------------------------------------------------|-------------------------------------|--------------------------------------------------------|-----------------------------------------------|---------------------------------|
| Investigator:<br>Lily Carayannis                 | Team:<br>Squad #12                                        | CCRB Case #:<br>201409305           | <input checked="" type="checkbox"/> Force              | <input checked="" type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                  |                                                           |                                     | <input type="checkbox"/> Abuse                         | <input type="checkbox"/> O.L.                 | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Monday, 07/28/2014 2:54 PM   | Location of Incident:<br>Wyckoff Avenue and Himrod Street | 18 Mo. SOL<br>1/28/2016             | Precinct:<br>83                                        |                                               |                                 |
| Date/Time CV Reported<br>Mon, 09/08/2014 8:17 PM | CV Reported At:<br>CCRB                                   | How CV Reported:<br>On-line website | Date/Time Received at CCRB<br>Wed, 09/10/2014 11:16 AM |                                               |                                 |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |
|                    |      |              |

| Witness(es) | Home Address |
|-------------|--------------|
|             |              |
|             |              |
|             |              |

| Subject Officer(s)      | Shield | TaxID  | Command |
|-------------------------|--------|--------|---------|
| 1. POM Saeed Nieves     | 17115  | 946060 | 083 PCT |
| 2. POF Stephanie Banchs | 25406  | 940961 | 083 PCT |
| 3. SGT Anna Serrano     | 03572  | 916675 | 083 PCT |
| 4. An officer           |        |        | 083 PCT |

| Witness Officer(s)      | Shield No | Tax No | Cmd Name |
|-------------------------|-----------|--------|----------|
| 1. SGT Jennifer Lavelle | 00235     | 933921 | 083 PCT  |
| 2. POM Kevin Ermann     | 05856     | 951712 | 083 PCT  |

| Officer(s)               | Allegation                                                          | Investigator Recommendation |
|--------------------------|---------------------------------------------------------------------|-----------------------------|
| A . SGT Anna Serrano     | Discourtesy: SGT Anna Serrano spoke discourteously to § 87(2)(b)    | A . Unsubstantiated         |
| B . POM Saeed Nieves     | Force: PO Saeed Nieves used physical force against § 87(2)(b)       | B . Unfounded               |
| C . POM Saeed Nieves     | Force: PO Saeed Nieves used a chokehold against § 87(2)(b)          | C . Unfounded               |
| D . POM Saeed Nieves     | Discourtesy: PO Saeed Nieves spoke discourteously to § 87(2)(b)     | D . Unsubstantiated         |
| E . POM Saeed Nieves     | Discourtesy: PO Saeed Nieves spoke discourteously to individuals.   | E . Unsubstantiated         |
| F . An officer           | Discourtesy: An officer spoke discourteously to § 87(2)(b)          | F . Officer(s) Unidentified |
| G . POF Stephanie Banchs | Discourtesy: PO Stephanie Banchs spoke discourteously to § 87(2)(b) | G . Unsubstantiated         |
|                          | § 87(4-b) § 87(2)(g)                                                |                             |

### Case Summary

On July 28, 2014, § 87(2)(b) called 911 against § 87(2)(b) who she alleged had broken an order of protection numerous times between July 26, and July 28, 2014. PO Saeed Nieves and SGT Anna Serrano, both from the 83<sup>rd</sup> Precinct, responded. PO Nieves and SGT Serrano instructed § 87(2)(b) to set up a meeting with § 87(2)(b) at a coffee shop located at the corner of Wyckoff Avenue and Himrod Street in Brooklyn while the officers watched. § 87(2)(b) set up the meeting and § 87(2)(b) arrived. PO Nieves and SGT Serrano approached § 87(2)(b). SGT Serrano allegedly said, “Get the fuck on the ground. Give me a fucking reason” (**Allegation A**). PO Nieves allegedly charged at § 87(2)(b) who was seated, and tackled him, causing both to roll on the ground (**Allegation B**). § 87(2)(b) ended up on top of PO Nieves and PO Nieves allegedly locked his arm around § 87(2)(b)'s throat and pulled back constricting § 87(2)(b)'s breathing (**Allegation C**). PO Nieves allegedly yelled, “Give me a fucking reason” (**Allegation D**). PO Nieves then allegedly said to the bystanders, “Back the fuck up. Back the fuck up from my crime scene. This guy likes to shoot at his girlfriend” (**Allegation E**). Additional officers arrived to the scene and rolled § 87(2)(b) off of PO Nieves. PO Nieves allegedly bent § 87(2)(b)'s wrist causing it to fracture (**Allegation B continued**). An officer said, “Motherfucker, you got what was coming to you” (**Allegation F**). § 87(2)(b) was handcuffed and placed in a patrol vehicle, where PO Banchs said, “Shut the fuck up and enjoy the ride” (**Allegation G**). PO Nieves said to him that PO Nieves’ arm was “fucked up” and that § 87(2)(b) was a liar (**Allegation D continued**). § 87(2)(b) was treated at § 87(2)(b) while in police custody for contusions. § 87(2)(b) was charged with multiple counts of § 87(2)(b).

This case has surveillance video which does not have audio.

### Mediation, Notice of Claim, and Criminal Histories

This case was unsuitable for mediation as § 87(2)(b) was claiming personal injury and he was arrested. As of January 22, 2015, § 87(2)(b) has not filed a Notice of Claim with the New York City Office of the Comptroller (encl. J2). § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

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§ 87(2)(b)

### Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (encl. B4)
- PO Saeed Nieves has been a member of the service for seven years and has no substantiated CCRB complaints against him (encl. B3).
- PO Stephanie Banks has been a member of the service for nine years and has no substantiated CCRB complaints against her (encl. B2).
- SGT Anna Serrano has been a member of the service for 19 years and has one substantiated CCRB allegation against her (encl. B1):
  - 200204919, one allegation of a refusal to provide medical treatment was substantiated by the Board and the NYPD found her guilty. She lost 10 vacation days as a result.

## Findings and Recommendations

### Explanation of Subject Officer Identification

§ 87(2)(b) (encl. C1-10) could not see the officer who allegedly stated, “Motherfucker, you got what was coming to you.” He could only describe the voice as a male’s voice. Numerous male officers were on the scene and none of the officers interviewed acknowledged hearing or saying this statement. § 87(2)(g)

PO Nieves (encl. F1-24), PO Banchs (encl. H5-6), and SGT Serrano (encl. G1-3) all identified themselves and each other in the surveillance video. PO Nieves and SGT Serrano were the first officers to approach § 87(2)(b) § 87(2)(g)

The video evidence shows that PO Banchs and SGT Serrano were the only female officers at the location, § 87(2)(g)

### Investigation Findings and Recommendations

**Allegation A—Discourtesy: SGT Anna Serrano spoke discourteously to** § 87(2)(b)

**Allegation D—Discourtesy: PO Saeed Nieves spoke discourteously to** § 87(2)(b)

**Allegation E—Discourtesy: PO Saeed Nieves spoke discourteously to individuals.**

**Allegation G—Discourtesy: PO Stephanie Banchs spoke discourteously to** § 87(2)(b)

§ 87(2)(b) (encl. C1-10) alleged when PO Nieves and SGT Serrano approached him, SGT Serrano said, “Get the fuck on the ground. Give me a fucking reason.” Then during the struggle, PO Nieves said, “Give me a fucking reason.” PO Nieves then said to individuals watching the struggle, “Back the fuck up. Back the fuck up from my crime scene. This guy likes to shoot at his girlfriend.” Then while in the patrol vehicle, PO Banchs said, “Shut the fuck up and enjoy the ride.” PO Nieves told § 87(2)(b) that his arm was “fucked up.”

None of the witnesses were cooperative with the investigation (encl. E8). None of the video evidence obtained had sound.

All of the officers interviewed denied saying these phrases and they denied hearing these phrases said (encl. encl. F1-H11).

§ 87(2)(g)

It is therefore recommended that **Allegations A, D, E, and G** be **unsubstantiated**,

**Allegation B—Force: PO Saeed Nieves used physical force against** § 87(2)(b)

**Allegation C—Force: PO Saeed Nieves used a chokehold against** § 87(2)(b)

§ 87(2)(b) (encl. C1-10) alleged that PO Nieves charged at § 87(2)(b) and tackled him while § 87(2)(b) was sitting on a chair. He stated the force of the hit made both § 87(2)(b) and PO Nieves fall and roll on the ground. § 87(2)(b) ended up on top of PO Nieves and PO Nieves placed his arm like a bar around § 87(2)(b)'s throat. PO Nieves used his other hand to pull the arm closer to his body while he held his legs around § 87(2)(b)'s torso. § 87(2)(b) stated that he did not resist beyond attempting to remove PO Nieves arm from his throat and flipping his legs “like a fish out of water.” PO Nieves then bent § 87(2)(b) wrist forcefully causing it to fracture while handcuffing him.

§ 87(2)(a) PHL § 18(6)

§ 87(2)(b)'s arrest photograph does not depict any visible injuries to his throat or head (encl. I21).

The surveillance video shows PO Nieves and SGT Serrano approach § 87(2)(b) and grab both of his arms. § 87(2)(b)'s arms move up and § 87(2)(b) forces his weight toward PO Nieves and SGT Serrano, causing everyone to fall to the ground. PO Nieves grips § 87(2)(b) through his armpits and § 87(2)(b) grabs a fence. SGT Serrano removes his hand from the fence and § 87(2)(b) attempts to get up. § 87(2)(b) then rolls atop PO Nieves and PO Nieves holds § 87(2)(b)'s arms behind his back through his armpits. At no point does PO Nieves have any contact with § 87(2)(b)'s throat or neck. Additional units arrive and pull § 87(2)(b) off of PO Nieves (encl. E1-6).

PO Nieves (encl. F1-24) denied using any force against § 87(2)(b) other than holding his arms behind his back and wrapping his legs around him. When he attempted to handcuff § 87(2)(b), § 87(2)(b) pulled his arm away and fell as a result, taking PO Nieves with him to the ground. PO Nieves fractured his right arm as a result of this fall. PO Nieves did not handcuff § 87(2)(b); he instructed other officers to handcuff § 87(2)(b) when he released his hold. He did not know that § 87(2)(b) complained of injuries and he did not transport § 87(2)(b) to the emergency room. § 87(2)(b), § 87(2)(a) PHL § 18(6)

SGT Serrano (encl. G1-3) grabbed § 87(2)(b)'s wrist initially in the encounter. § 87(2)(b) and PO Nieves fell to the ground causing SGT Serrano to fall to the ground. She did not know how they fell. SGT Serrano did not see any force used against § 87(2)(b) beyond PO Nieves holding his arms behind his back. § 87(2)(b) kicked his legs and swung his arms. SGT Serrano sat on his legs to control them. SGT Serrano attempted to find her asp to hit him with it, but it fell out of her belt during the struggle. Additional officers arrived and handcuffed § 87(2)(b). SGT Serrano injured her knee as a result of the struggle. She did not see any injuries on § 87(2)(b) and § 87(2)(b) did not complain of any injuries to her.

No other officers were present for the initial struggle and none of the other officers observed an officer bend § 87(2)(b)'s wrist causing it to fracture (encl. H1-11).

§ 87(2)(g)

. It is therefore recommended that **Allegations B and C be unfounded.**

**Allegation F—Discourtesy: An officer spoke discourteously to § 87(2)(b)**

§ 87(2)(b) (encl. C1-10) stated that an officer who he could not see and thus he could not describe said, “Motherfucker, you got what was coming to you.” § 87(2)(g)

. It is therefore recommended that **Allegation F be closed as officer unidentified.**

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

POD: \_\_12\_\_

Investigator: \_\_\_\_\_ Lily Carayannis May 7, 2015  
Signature Print Date

Supervisor: \_\_\_\_\_  
Title/Signature Print Date

Reviewer: \_\_\_\_\_  
Title/Signature Print Date

Reviewer: \_\_\_\_\_  
Title/Signature Print Date